

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 09
JUDICIAL OFFICER: JOHN P DEVINE
HEARING DATE: 12/08/2025

ALL REMOTE APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties may appear by Zoom unless told to appear by another method. For all other matters, if argument is requested, appearances may be by Zoom or in person

Please email Dept09@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1602392251?pwd=WmE4bG5iK0J3WWtTOHpteVBjRlBMQT09>

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00793
CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH
HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION
FILED BY: WALNUT CREEK PRESBYTERIAN CHURCH
TENTATIVE RULING:

Hearing **continued** to February 9, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
*HEARING ON MOTION IN RE: STAY THE ACTION PENDING DETERMINATION OF APPEAL
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Defendant BNSF Railway Company's motion for a stay is **denied**.

This case arises out of an accident at a railroad crossing. Decedent Joshua Schaefer was in a

car driven by Kaylee Mello when her car got stuck on the railroad tracks and was subsequently hit by a train. Joshua died as a result of the accident. Joshua's parents filed separate lawsuits, which were consolidated.

In August 2025, the court granted the City of Oakley's motion for summary judgment. Plaintiff Ronny Schaefer appealed this ruling. Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello have not yet filed an appeal. BNSF seeks a stay of the entire case pending the outcome of the appeal of the Court's granting of summary judgment in favor of Oakley.

“ '[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.' [Citation.] ... '[t]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.' ” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.)

The majority of cases cited by moving party involved staying one action while another litigation proceeded. (See, *Adams v. Paul* (1995) 11 Cal.4th 583, 592-93, *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, and *Montrose Chemical Corp. v. Superior Court* (1993) 6 Cal.4th 287, 301.) In *Houghton v. Superior Court of Alameda County* (1922) 187 Cal. 661, the court found held that “a judgment which would be *res adjudicata* of matters involved in an action may be availed of during the pendency of an appeal from such judgment, either by a plea in abatement upon proof of which a judgment may be rendered that the action abate (*Connor v. Bank of Bakersfield*, 174 Cal. 400), or by a continuance of a second action until the result of the appeal has been determined”. Moving party has not cited a case similar to this one where one co-defendant prevailed on summary judgment and the trial court stayed the entire case pending appeal of the summary judgment motion. Still, the Court could, using its inherent power, grant a stay in this case.

BNSF argues that there is a high probability of inconsistent, multiple, and contradictory verdicts. BNSF also argues that should Plaintiff prevail on its motion in limine one, precluding BNSF from arguing compared fault of the City, that would prejudice BNSF. BNSF also argues that it would be unfair to make BNSF go to trial alone when, if the appeal is successful, Oakley will then have to go to trial alone later. BNSF also argues that that expert discovery has not been completed and it would be best if all parties, including Oakley, were involved in expert discovery. Finally, BNSF argues that there is a risk of double recovery should the appeal prevail and Plaintiffs win trials against BNSF and Oakley.

Plaintiff Ronny Schaefer agrees that this case should be stayed. He argues that BNSF's motion for judgment on the pleadings should not be decided before the appeal of the granting of summary judgment as to Oakley. He also argues that, he anticipates BNSF will try to exclude evidence presented in the opposition to Oakley's motion for summary judgment, which would be unfair to Plaintiff. Plaintiff is also concerned that if the appeal is successful, there would be two separate trials and a jury would not be able to apportion fault among Oakley and BNSF fairly. Finally, Plaintiff argues that if the appeal is granted, they would have to engage in costly expert discovery with Oakley after having already completed the expert discovery with BNSF.

Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello oppose a stay. This case was filed in July

2022 and with a stay pending appeal, Plaintiffs argue that the trial would not take place within five years of filing the complaint. Plaintiffs argue that witness's memories will fade with time. Further, Plaintiffs argue that there will be inefficiency and injustice if a stay pending appeal is ordered in this case.

BNSF and Plaintiff Schaefer's reasons for requesting a stay are based primarily on the assumption that the Court's ruling on Oakley's motion for summary judgment was incorrect. The Court does not view its ruling on the summary judgment motion as a sufficient buttress to the stay request. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial are better raised in motions in limine. Further, a delay pending appeal will likely delay this case by another two years. The Court exercises its discretion and denies the request for a stay.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: COURT APPOINTED RECEIVER'S MOTION FOR AN ORDER APPROVING RECEIVER'S FINAL REPORT AND ACCOUNT, DISCHARGING RECEIVER, APPROVING FINAL FEES AND COSTS OF RECEIVER AND COUNSEL, APPROVING DISPOSITION OF CMD SALLOON, LLC'S ASSETS, AND TERMINATING RECEIVERSHIP.**

FILED BY:

TENTATIVE RULING:

Appearance required.

4. 9:00 AM CASE NUMBER: C24-01538

CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.

***HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.**

FILED BY:

TENTATIVE RULING:

The hearing is continued to February 2, 2026, at 9 a.m. in Department 34 due to the continuance of the motion to consolidate in Case No. C23-02401 until January 22, 2026, in Department 39.

This lawsuit is assigned to Department 34 for all purposes, effective January 5, 2026.